

Amendment No. 1 to SB1048

Bowling
Signature of Sponsor

AMEND Senate Bill No. 1048

House Bill No. 562*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 58-2-302, is amended by designating the existing language as subsection (a) and adding the following as a new subsection (b):

(b)

(1) As used in this subsection (b):

(A) "Lawful occupation" means a lawful vocation, trade, business, profession, field of specialization, or other means of livelihood that is not specifically deemed to be unlawful under the law of this state; and

(B) "Public official" means the executive head of this state or the executive head of a county, incorporated city or town, or metropolitan form of government.

(2) During the existence of a state of emergency declared pursuant to this chapter, or at any other time, a public official shall not prohibit the operation of or engagement in a lawful occupation by categorizing a lawful occupation as non-essential by executive order, proclamation, or rule.

(3) This subsection (b) does not apply where a person engaged in a lawful occupation is prohibited from operating or engaging in the lawful occupation, either temporarily or permanently, as a result of a violation of state law.

(4)

(A) A violation of this subsection (b) committed by a public official who is the executive head of a county, incorporated city or town, or metropolitan form of government is an actionable basis to institute ouster proceedings under title 8, chapter 47. A public official who is ousted for a violation of this subsection (b) is ineligible for election for the same position for a period of five (5) years.

(B) A person harmed by a violation of subsection (b) committed by a public official who is the executive head of this state may bring a civil action for actual damages or declaratory relief against the public official who violated this subsection (b). A violation committed by a public official who is the executive head of this state subjects the executive head of this state to personal liability in an action brought pursuant to this subdivision (b)(4)(B). A court shall award litigation costs and fees, including reasonable attorneys' fees, to a person who prevails in an action brought pursuant to this subdivision (b)(4)(B).

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to prohibited conduct occurring on or after that date.